UP Special Topic 3 — Polity, Constitutional Framework, Administration and Local Governance

Current Affairs

Year	Fact	Why it matters
Rolling	Refresh edition-bound figures from latest Census / Survey / State CA desks.	Do not invent interim totals.

Teaching cards

2.1 The State Executive & Civil Administration

A. The Governor of Uttar Pradesh (Articles 153–161)

- The Governor is the constitutional and executive head of the State.
- **Appointment & Qualifications**: Appointed by the President of India under Article 155 for a normal term of 5 years (holds office during the pleasure of the President). Must be a citizen of India and at least 35 years of age.
- **Oath of Office**: Administered by the Chief Justice of the **Allahabad High Court** (Article 159).
- **Historical Milestones**:
- **Smt. Sarojini Naidu**: Appointed on 15 August 1947, becoming the **First Woman Governor of any State in Independent India**. She served until her death in office on 2 March 1949 at Lucknow.
- **Sri Hormasji Peroshaw Mody**: Served as Governor from 1949 to 1952 during the formal renaming of the state from United Provinces to Uttar Pradesh on 24 January 1950.

B. The Chief Minister and Council of Ministers (Articles 163–167)

- The real executive authority is vested in the Council of Ministers headed by the Chief Minister.
- **Size Limitation (91st Amendment Act, 2003)**:
- Article 164(1A) mandates that the total number of Ministers, including the Chief Minister, in the Council of Ministers in a State shall **not exceed 15%** of the total number of members of the Legislative Assembly.
- For Uttar Pradesh (403 ext{ MLAs} imes 15\% = 60.45), the maximum permissible size of the UP Council of Ministers is **60 Ministers**. The constitutional minimum floor is 12 ministers.
- **Historical Leadership in UP**:
- **Pandit Govind Ballabh Pant**: First Premier of United Provinces (1937–1939, 1946–1950) and the **First Chief Minister of Uttar Pradesh** (26 January 1950 – 27 December 1954). Conferred Bharat Ratna in 1957.
- **Dr. Sampurnanand**: Second CM (1954–1960); pioneer of Varanasi Sanskrit University (Sampurnanand Sanskrit University).

- **Smt. Sucheta Kripalani**: Took office on 2 October 1963, becoming the **First Woman Chief Minister of Uttar Pradesh and in India** (served until March 1967).
- **Chaudhary Charan Singh**: First non-Congress Chief Minister of UP (1967 and 1970); later 5th Prime Minister of India (champion of peasant rights / *Kisan Diwas*).
- **Mayawati**: First Dalit woman Chief Minister of any Indian state; served as UP CM across 4 separate terms.

2.2 The State Legislature of Uttar Pradesh

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│                    UTTAR PRADESH STATE LEGISLATURE                   │
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│ Legislative Assembly (Vidhan Sabha) │ Legislative Council (Vidhan Parishad)│
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│ • 403 Elected Members            │ • 100 Members (Permanent House)   │
│ • Direct Election (Universal Adult) │ • Indirect Elections + 10 Nominated │
│ • Term: 5 Years (Can be dissolved) │ • Term: 6 Years (1/3 retire / 2 yrs) │
│ • Reservation: 84 SC, 2 ST       │ • Maximum ceiling: 134 (1/3 of 403) │
│ • Controls Money Bills (Art. 198) │ • Advisory/Delaying power only    │
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A. Legislative Assembly (Vidhan Sabha)

- **Total Assembly Seats**: **403**.
- **Historical Trajectory**:
- United Provinces Assembly in 1950 had 430 seats.
- Delimitation in 1967 reduced it to 425 seats.
- On **9 November 2000**, with the creation of Uttarakhand (carving out 13 hill districts and 22 assembly constituencies), the UP Assembly was reconstituted to **403 elected seats** (and 1 nominated Anglo-Indian seat, which was subsequently discontinued via the 104th Constitutional Amendment Act, 2019).
- **Seat Reservations**: Under Article 332, **84 seats** are reserved for Scheduled Castes (SC) and **2 seats** (Obra and Duddhi in Sonbhadra) are reserved for Scheduled Tribes (ST).

B. Legislative Council (Vidhan Parishad)

- Uttar Pradesh has a **bicameral legislature** (one of only 6 states: UP, Bihar, Maharashtra, Karnataka, Andhra Pradesh, and Telangana).
- **Total Council Seats**: **100**.
- **Constitutional Limits (Article 171)**: Maximum strength cannot exceed one-third of the total membership of the Legislative Assembly (403 / 3 = 134), and minimum strength cannot be less than 40.
- **Composition of the 100 Seats**: 1. **36 Members (36%)**: Elected by electorates consisting of members of Municipalities, Zila Panchayats, and Kshetra Panchayats (Local Authorities constituencies). 2. **36 Members (36%)**: Elected by the members of the Legislative Assembly (MLAs) using proportional representation by means of a single transferable vote. 3. **10 Members (10%)**: Nominated by the

Governor having special knowledge/practical experience in Literature, Science, Art, Co-operative Movement, and Social Service. 4. **9 Members (9%)**: Elected by registered Graduates of at least 3 years' standing from Graduates constituencies. 5. **9 Members (9%)**: Elected by Teachers of at least 3 years' standing in secondary/higher educational institutions from Teachers constituencies.

2.3 The Judiciary: High Court of Judicature at Allahabad

A. Genesis and Evolution

- Established by Royal Letters Patent on **17 March 1866** under the High Courts Act, 1861, as the **High Court of Judicature for the North-Western Provinces** at **Agra**.
- Shifted from Agra to **Allahabad (Prayagraj)** in **1869**.
- Designated officially as the **High Court of Judicature at Allahabad** on 11 March 1919.
- **The Lucknow Bench**:
- The Chief Court of Oudh was established at Lucknow in 1925.
- By the **United Provinces High Courts (Amalgamation) Order, 1948**, the Chief Court of Oudh was amalgamated into the High Court of Allahabad, creating the permanent **Lucknow Bench**.
- **Jurisdiction Post-2000**:
- With the enactment of the UP Reorganisation Act, 2000, 13 northern districts fell under the newly established **Uttarakhand High Court at Nainital** (established 9 November 2000).

B. Bench Strength and Jurisdiction

- **Sanctioned Judicial Strength**: **160 Judges** (Permanent: 119, Additional: 41), making it the **largest High Court in India and the world by judicial manpower**.
- **First Chief Justice**: Sir Walter Morgan (1866–1871).
- **First Indian Chief Justice (Post-Independence)**: Justice Bidhu Bhushan Malik (1947–1955).

2.4 Administrative Divisions and District Structure

Uttar Pradesh is organized administratively into **18 Divisions (Mandals)**, comprising **75 Districts (Zilas)**, **351 Tehsils**, and **826 Development Blocks**:

THE 18 ADMINISTRATIVE DIVISIONS OF UP

Division Name	District Count	Constituent Districts
1. Lucknow	6	Lucknow, Unnao, Rae Bareli, Sitapur, Hardoi, Lakhimpur Kheri
2. Kanpur	6	Kanpur Nagar, Kanpur Dehat, Etawah, Auraiya, Farrukhabad, Kannauj
3. Meerut	6	Meerut, Ghaziabad, Gautam Buddha Nagar, Bulandshahr, Baghpat, Hapur
4. Ayodhya (Faizabad)	5	Ayodhya, Barabanki, Amethi, Sultanpur, Ambedkar Nagar

5. Aligarh	4	Aligarh, Hathras, Kasganj, Etah
6. Agra	4	Agra, Mathura, Firozabad, Mainpuri
7. Varanasi	4	Varanasi, Jaunpur, Ghazipur, Chandauli
8. Prayagraj	4	Prayagraj, Pratapgarh, Fatehpur, Kaushambi
9. Gorakhpur	4	Gorakhpur, Maharajganj, Deoria, Kushinagar
10. Bareilly	4	Bareilly, Badaun, Pilibhit, Shahjahanpur
11. Moradabad	4	Moradabad, Bijnor, Rampur, Sambhal, Amroha
12. Devipatan	4	Gonda (HQ), Balrampur, Shravasti, Bahraich
13. Chitrakoot	4	Banda (HQ), Chitrakoot, Hamirpur, Mahoba
14. Mirzapur	3	Mirzapur, Sonbhadra, Bhadohi
15. Azamgarh	3	Azamgarh, Mau, Ballia
16. Basti	3	Basti, Siddharthnagar, Sant Kabir Nagar
17. Jhansi	3	Jhansi, Lalitpur, Jalaun
18. Saharanpur	3	Saharanpur, Muzaffarnagar, Shamli

> **Special Divisional Headquarter Notes**: - **Devipatan Division**: Headquartered at **Gonda** (not Devipatan). - **Chitrakoot Division**: Headquartered at **Banda** (not Chitrakoot).

2.5 Local Self-Government in Uttar Pradesh

A. Rural Local Bodies (Panchayati Raj)

- Enacted through the **UP Panchayat Raj Act, 1947** (for Gram Panchayats) and the **UP Kshettra Panchayats and Zila Panchayats Act, 1961** (for intermediate and district tiers), conforming to the **73rd Constitutional Amendment Act, 1992**.
- **Three-Tier Structure**: 1. **Gram Panchayat (Village Level)**: Headed by directly elected **Gram Pradhan**. All adults registered on electoral rolls form the **Gram Sabha**. 2. **Kshetra Panchayat (Block Level)**: Headed by **Block Pramukh** (elected by elected members of Kshetra Panchayat / BDCs). Executive officer is **Block Development Officer (BDO)**. 3. **Zila Panchayat (District Level)**: Apex tier headed by **Zila Panchayat Adhyaksha** (elected by elected Zila Panchayat ward members). Executive officer is Chief Development Officer (CDO) / Apar Mukhya Adhikari (AMA).
- **Reservation Policy**:
- Constitutional floor is 33.3% (1/3rd) for women; Uttar Pradesh statutory provisions guarantee **50% reservation for women** across PRIs and ULBs.
- Reservations for SCs and STs proportional to their population; 27% reservation for Backward Classes (OBCs).

B. Urban Local Bodies (Municipalities)

- Enacted through the **UP Municipalities Act, 1916** and **UP Municipal Corporation Act, 1959**, conforming to the **74th Constitutional Amendment Act, 1992**.
- **Three Categories of Urban Bodies**: 1. **Nagar Nigam (Municipal Corporation)**: For large urban areas with populations exceeding 5 lakhs. Headed politically by a directly elected **Mayor (Mahapaur)**; administrative executive is the **Municipal Commissioner (Nagar Ayukt - IAS)**.

    - **17 Nagar Nigams in UP**: Lucknow, Kanpur, Prayagraj, Varanasi, Agra, Ghaziabad, Meerut, Bareilly, Aligarh, Moradabad, Gorakhpur, Jhansi, Saharanpur, Firozabad, Ayodhya, Mathura-Vrindavan, Shahjahanpur (17th Nagar Nigam). 2. **Nagar Palika Parishad (Municipal Council)**: For smaller urban areas (populations 1 lakh to 5 lakhs). Headed by an elected President (*Parishad Adhyaksha*); executive officer is Executive Officer (EO). 3. **Nagar Panchayat (Town Area)**: For transitional areas from rural to urban.

- **The Industrial Township Exception (Article 243Q)**:
- Under the Proviso to Article 243Q(1), an urban area specified as an **Industrial Township** provided with municipal services by a statutory development authority is exempt from constituting a Municipal Corporation.
- Examples: **NOIDA** (New Okhla Industrial Development Authority), **Greater Noida**, and **YEIDA** (Yamuna Expressway Industrial Development Authority) operate under the UP Industrial Area Development Act, 1976.

Bilingual Terminology -- UP Polity and Administration

English	Hindi	Key Anchor
Vidhan Sabha	विधान सभा	UP Legislative Assembly -- 403 seats (largest in India)
Vidhan Parishad	विधान परिषद	UP Legislative Council -- 100 seats
Lok Ayukta	लोक आयुक्त	State-level ombudsman for UP; appointed by Governor
UP Legislative Assembly	उत्तर प्रदेश विधान सभा	403 constituencies; 2022 elections won by BJP
UP Governor	उत्तर प्रदेश के राज्यपाल	Appointed by President; ceremonial head of State
UP Chief Minister	उत्तर प्रदेश के मुख्यमंत्री	Head of Council of Ministers; elected majority leader
UP Panchayati Raj	पंचायती राज	3-tier structure under UP Panchayati Raj Act, 1947
Gram Panchayat	ग्राम पंचायत	Village-level body; basic unit of rural self-governance
Kshetra Panchayat	क्षेत्र पंचायत	Intermediate level = Block level in UP
Zila Panchayat	जिला पंचायत	District-level Panchayat body in UP
Nagar Panchayat	नगर पंचायत	Transitional area body (between rural and urban)
Nagar Palika Parishad	नगर पालिका परिषद	Municipal council (medium towns)
Nagar Nigam	नगर निगम	Municipal Corporation (large cities)
DM/Collector	जिलाधिकारी / जिलाधीश	District Magistrate; principal executive officer of a district
SDM	उपजिलाधिकारी (SDM)	Sub-Divisional Magistrate; sub-district level

Extended Theory -- UP's Legislative Structure

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UTTAR PRADESH LEGISLATURE (BICAMERAL)
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VIDHAN PARISHAD (Upper House)
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Seats: 100 (1/3 elected, 1/3 local bodies,
            1/12 graduates, 1/12 teachers,
            1/6 Governor-nominated)
Term: 6 years (staggered)

VIDHAN SABHA (Lower House)
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Seats: 403 (largest State legislature in India)
Term: 5 years

Speaker → Vidhan Sabha presiding officer
Chairman → Vidhan Parishad presiding officer

CURRENT STATUS (as of 2022 elections):
Ruling party: Bharatiya Janata Party (BJP)
Chief Minister: Yogi Adityanath
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UP Panchayati Raj Structure

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UP PANCHAYATI RAJ -- 3-TIER STRUCTURE
(Under UP Panchayati Raj Act, 1947 + 73rd Amendment 1992)
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Tier 3 (District): ZILA PANCHAYAT (जिला पंचायत)
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Tier 2 (Block): KSHETRA PANCHAYAT (क्षेत्र पंचायत)
          |
Tier 1 (Village): GRAM PANCHAYAT (ग्राम पंचायत)

SPECIAL FEATURES IN UP:
- Gram Panchayat = headed by Pradhan (प्रधान)
- Kshetra Panchayat = headed by Pramukh (प्रमुख)
- Zila Panchayat = headed by Adhyaksha (अध्यक्ष)
- UP has ~58,000+ Gram Panchayats
- 33% reservation for women (UP increased to 50% in 2020)
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Urban Local Bodies in UP

Body	Governing City Population	Number in UP (approx.)
Nagar Nigam (Municipal Corporation)	5 lakh+	17 (includes Lucknow, Kanpur, Varanasi, Agra, Prayagraj, Meerut, etc.)

Body	Governing City Population	Number in UP (approx.)
Nagar Palika Parishad (Municipal Council)	25,000-5 lakh	200+
Nagar Panchayat	10,000-25,000 (transitional)	400+

One-Liner Revision -- UP Polity

#	Fast Fact
1	UP Vidhan Sabha = **403 seats** (largest State legislature in India)
2	UP Vidhan Parishad = **100 seats**
3	UP Lok Sabha seats = **80** (largest State delegation)
4	UP Rajya Sabha seats = **31**
5	UP State governed by **UP Panchayati Raj Act, 1947**
6	Gram Panchayat head = **Pradhan** (प्रधान)
7	Kshetra Panchayat head = **Pramukh** (प्रमुख)
8	Zila Panchayat head = **Adhyaksha** (अध्यक्ष)
9	UP Nagar Nigams = **17** (2023)
10	UP has 75 districts (largest number of districts in any State)
11	UP State capital = **Lucknow**
12	UP HC = **Allahabad High Court** (Prayagraj) -- largest HC by judges
13	Allahabad HC established = **1866**
14	UP Governor appointed by **President of India**
15	Women reservation in UP Panchayats = **50%** (increased in 2020)